

24STCV31579 24STCV31579

County: los-angeles

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Case Number: 24STCV31579 Hearing Date: June 30, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

VICTORIA ROBERTS, individually and a Successor in Interest to JACKIE D.
ROBERTS, deceased, et al.,

Plaintiffs,

v.

3M COMPANY, et al.

Defendants.

Case No. 24STCV31579

Hearing Date: June 30, 2026

Time:

9:00 a.m.

2 [TENTATIVE] ORDER

RE:2

DEFENDANT METALCLAD INSULATION, LLC'S MOTION
FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

I.

Background

On June 13, 2025, Plaintiffs Victoria and Jackie Roberts filed their complaint for personal injury alleging Mr. Roberts developed mesothelioma from direct exposure to asbestos and asbestos-containing products from his work as an electrician. Plaintiffs also allege that he was exposed to asbestos-contaminated talc products. On June 13, 2025, Plaintiffs filed the operative first amended complaint.

On March 23, 2026, Metalclad Insulation, LLC ("Metalclad" or "Defendant") moved for summary judgment, arguing Plaintiffs lack and cannot reasonably obtain evidence to support their claims that Mr. Roberts was exposed to asbestos by an asbestos-containing product for which it is responsible. In the alternative, Metalclad moves for summary adjudication of the causes of action for false representation, intentional tort, breach of express and implied warranties, premises liability, negligence under FEHA, conspiracy, and the demand for punitive damages.

On May 22, 2026, Plaintiffs filed opposition, requesting a continuance to allow them to depose Metalclad's Person Most Qualified ("PMQ") on May 29, 2026.

On June 1, 2026, Metalclad replied, arguing that Plaintiffs can learn nothing material from deposing its PMQ and reiterating arguments from its moving papers. Alternatively, Metalclad requests additional time to file a supplemental reply.

On June 5, 2026, the court granted Plaintiffs' request, continued the hearing, and granted the parties leave to file supplemental papers.

On June 12, 2026, Plaintiffs filed a supplemental opposition, arguing Metalclad's PMQ confirmed that Metalclad supplied insulation to Kaiser Steel and performed insulation contract work during Mr. Roberts's employment.

On June 23, 2026, Metalclad filed a supplemental reply, arguing that even if it supplied insulation to Kaiser Steel, Plaintiffs have no evidence that Mr. Roberts was exposed to this insulation.

Metalclad meets its burden to show that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Roberts was exposed to an asbestos-containing product for which it was responsible. Plaintiffs fail to present affirmative evidence to support their claims against Metalclad. Accordingly, Metalclad's motion for summary judgment is granted. The motions for summary adjudication are moot.

II.

Discussion

A.

Legal Standard

A defendant seeking summary judgment must "conclusively negate[] a necessary element of the plaintiff's case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial." (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing "that the plaintiff does not possess, and cannot reasonably obtain, needed evidence." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) "The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff's cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing." (Id. at p. 855.) " 'If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff's

factually devoid discovery responses.’ ” (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In asbestos

litigation, a plaintiff is required to show causation. A plaintiff must show “some threshold exposure to the defendant’s defective asbestos-containing products” and must further establish to a “reasonable medical probability” that a particular exposure or series of exposures was a “legal cause” of his injury, i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.)

Where a

plaintiff’s allegations pertain to asbestos as an intended ingredient of a product the plaintiff was exposed to occupationally, the plaintiff is required to present evidence “defendant’s product was definitely at his work site and that it was sufficiently prevalent to warrant an inference that plaintiff was exposed to it...” (Turley v. Familian Corp. (2017) 18 Cal.App.5th 969, 980 [Citing Lineaweaver, supra, 31 Cal.App.4th at p. 1420].)

California

law generally does not hold a manufacturer of a product liable for replacement asbestos-containing subcomponents supplied by another manufacturer. California accepts the “bare metal defense” such that manufacturers of a product are not generally liable for design defect or failure to warn when asbestos-containing sub-components it did not manufacture or supply are incorporated into its product. (O’Neil v. Crane Co. (2012) 53 Cal.4th 335, 362 [“We reaffirm that a product manufacturer generally may not be held strictly liable for harm caused by another manufacturer’s product. The only exceptions to this rule arise when the defendant bears some direct responsibility for the harm, either because the defendant’s own product contributed substantially to the harm [citation] or because the defendant participated substantially in creating a harmful combined use of the products [citation]”].)

1.

Defendant’s Burden: Factually Devoid

Metalclad

moves for summary judgment on the grounds that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Roberts was exposed to an asbestos-containing product for which Metalclad is responsible. Defendant argues that Plaintiffs' discovery responses are devoid of facts supporting their contention that Mr. Roberts was exposed to an asbestos-containing Metalclad product while he was employed at Kaiser Steel from 1966 to 1983 or at Santa Fe Railroad from 1984 to 1986. (Motion at p. 4 ["Plaintiffs have not produced any evidence of, or witnesses that can testify to, the exposure for which Metalclad is potentially responsible. (UMF Nos. 3-12.) Plaintiffs do not specify any particular location where Decedent allegedly encountered Metalclad, nor do they indicate the exact year or years within Decedent's employment during which such encounters may have taken place. (Id.) Furthermore, Plaintiffs' responses fail to identify any specific product for which Metalclad could be responsible in connection with Decedent's alleged exposure. (Id.) Also, there is insufficient evidence to support a claim for punitive damages against Metalclad. (Id.) Therefore, Plaintiffs have failed to provide sufficient information in discovery to prevent summary judgment of their causes of action."].)

In their

supplemental opposition, Plaintiffs argue that Metalclad's PMQ, Donald Trueblood, confirmed that Metalclad supplied asbestos-containing insulation products and installed insulation for Kaiser Steel between 1968 and the 1970s. (Opp. at pp. 2-3.) Plaintiffs argue that this testimony is sufficient to raise a triable issue of material fact regarding Mr. Roberts's exposure to Metalclad-supplied asbestos insulation materials. (Id.)

In its

supplemental reply, Metalclad argues that Plaintiffs have not met their burden on summary judgment despite the supplemental opposition because there is no evidence that Mr. Roberts was ever near the Metalclad insulation. (Reply at p.2.)

Metalclad relies

on Plaintiffs' responses to written discovery and Mr. Roberts's deposition testimony to support its motion. When Metalclad asked Plaintiffs to state all facts upon which they base their contention that Mr. Roberts was exposed to asbestos-containing products installed or removed by Metalclad, Plaintiffs

responded in relevant part:

“Decedent Jackie

Roberts’s exposure to asbestos and asbestos-containing products and/or equipment and/or equipment solely designed to be used with asbestos-containing products occurred at various locations from Plaintiffs allege that during this employment he worked with, or around others working with, asbestos containing products and products designed to be used with asbestos which caused him to be exposed to asbestos. It is this exposure to asbestos that caused Mr. Roberts to develop mesothelioma, which was the ultimate cause of his death. The contractors Mr. Roberts worked with and around during this employment was made by various entities, including, though not necessarily limited to: METALCLAD INSULATION LLC.”

(Tran Decl., Exh.

14 at p.3.) The responses also identify Plaintiffs’ responses to standard interrogatories, their exposure history sheet, and Mr. Roberts’s deposition testimony as evidence supporting Plaintiffs’ claims against Metalclad. (Id.)

Mr. Roberts testified at his

deposition that he had never removed or installed any pipe installation during his employment at Kaiser Steel. (Tran Decl., Exh. 20 at 12:17-19.) Mr. Roberts found the name Metalclad familiar but did not associate it with anything. (Id. at 10:12-16.) Although Mr. Roberts testified that he removed or installed insulation on a pump, valve, boiler, or furnace, he later testified that he had actually removed gaskets, not insulation:

“Q: Did you ever

remove or install any insulation on a pump or a valve or on any other equipment outside of a boiler or furnace at Kaiser?

A: Yes.

Q: Okay. From what

type of equipment did you either remove insulation or install insulation on?

A: Usually on pump assemblies.

Q: All right. And

how often did you do that?

A: Too many to mention.

Q: Was the insulation on the pumps? Was it on a flange? What do you recall?

A: Typically on a flange.

...

Q: Do you have any information as to the brand or manufacturer of any of the insulation you removed from a flange?

A: We, Garlock.

Q: The gasket sits between the flange faces; correct?

A: Yes.

Q: Do you ever remove – recall removing any insulation that was on the exterior of the flange, for instance on the bolts of the flange?

A: On the exterior, not so much, no.

Q: Okay. Do you recall removing anything from a flange other than a gasket?

A: Pretty much just the gasket.

(Tran
Decl., Exh. 20 at 12:20-14:19.)

Metalclad satisfies its burden to show that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Roberts was exposed to an

asbestos-containing product for which it is responsible. Plaintiffs' discovery responses were required to provide a factual basis to show Metalclad products containing asbestos were present at Mr. Roberts's worksite and that these products were sufficiently prevalent to warrant an inference that he was exposed to it. (Turley, *supra*, 18 Cal.App.5th at p. 980, Collin, *supra*, 228 Cal.App.4th at p. 593.)

Here, Plaintiffs' interrogatory responses fail to establish that Metalclad's asbestos-containing products were present at Mr. Roberts's worksite because it fails to identify any particular asbestos-containing product attributable to Metalclad. (Tran Decl., Exh. 14 at p.3.) Mr. Roberts had no information during his deposition as to whether he was exposed to an asbestos-containing Metalclad product because he did not associate the Metalclad name with any products and had never worked with insulation from around pipes, pumps, valves, or any other equipment during his employment at Kaiser Steel. (Tran Decl., Exh. 20 at 10:12-16, 12:20-14:19.)

Plaintiffs' discovery responses are thus devoid of facts supporting Plaintiffs' contention that Mr. Roberts was exposed to an asbestos-containing product for which Metalclad was responsible. The responses give rise to an inference that Plaintiffs lack and cannot reasonably obtain evidence to support their claims against Metalclad. Accordingly, Metalclad satisfies its burden on summary judgment. The burden shifts to Plaintiffs.

2.

Plaintiffs' Burden

Plaintiffs

advance the deposition testimony of Metalclad's PMQ, Mr. Trueblood, to show that Metalclad supplied asbestos products to the Kaiser Steel plant where Mr. Roberts worked between 1966 and 1983. Plaintiffs direct the court's attention to Mr. Trueblood's testimony that Metalclad began making sales to Kaiser Steel in 1968. (Blumenfeld-James Supp. Decl., Exh. 1 at 25:6-10.) Metalclad sold a mixture of insulation manufactured by Kaylo and Pabco before eventually selling Pabco insulation exclusively in the category of calcium silicate insulation between 1968 and the 1980s unless there was a shortage of the material. (*Id.*, 41:11-43:6.) The Pabco insulation contained asbestos through 1971. (*Id.* at 141:17-20.) Mr. Trueblood reviewed a number of invoices documenting Metalclad's sales of Pabco products to Kaiser steel dating from 1968 through

the late 1970s. (Id. at 44:14-46:5, 49:15-53:4, 59:13-25, 61:6-21, 65:5-71:12.) The invoices show transactions for thousands of dollars through 1978. (Id. 112:21-24.) Although Metalclad's invoices did not specify whether it was Pabco insulation that was sold to Kaiser Steel as opposed to other Pabco products, Mr. Trueblood confirmed that he visited the site in connection with Metalclad's insulation installation services and that Kaiser Steel's hot lines were insulated. (Id. at 54:10-19, 56:5-23.) Metalclad also performed personnel protection work installing insulation and other safety measures to protect workers from being burned by the hot lines and hot pipes in areas of the plant. (Id. at 79:10-81:4.)

Mr.

Trueblood's testimony shows that Metalclad supplied Kaiser Steel with asbestos-containing insulation between 1968 and the late 1970s. However, the testimony at most establishes that Metalclad supplied and installed insulation at Kaiser Steel for their hot lines. Mr. Roberts testified that he had never installed or removed insulation from around piping, pumps, valves, or any other components. There is likewise no evidence in the discovery record that Mr. Roberts was ever near the Metalclad insulation when it was being installed. There is thus no evidence that Mr. Roberts worked near the insulation or that it was sufficiently prevalent at the worksite to support an inference that Mr. Roberts was exposed to it.

Lineaweaver

v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409 is instructive here. A defendant there, Plant, was the exclusive distributor of insulation products marketed under the Pabco trademark. (Lineaweaver, supra, 31 Cal.App.4th at p. 1413.) One plaintiff, Lineaweaver, was a laborer at a refinery. (Id.) The evidence was sufficient to support an inference that Lineaweaver was exposed to Plant's asbestos products because Plant's insulation was definitely at his worksite, Plant was the exclusive distributor in the area of Pabco asbestos insulation products at the relevant time, Lineaweaver worked directly with the asbestos insulation, Lineaweaver worked throughout the refinery which had insulation over two-thirds of its pipes and equipment, Lineaweaver saw boxes of Pabco products at the refinery, Plant was a significant supplier of asbestos products, performing about 50% of the insulation work at the refinery, and another major insulation contractor used Pabco insulation as fill-in supplies, constituting another 10 to 15 percent of the refinery's insulation installed by one particular contractor. (Id., at pp. 1419-1420.) Although there was no direct evidence that the plaintiff was exposed to Plant's

insulation, the significant circumstantial evidence was sufficient to support a reasonable inference of exposure. (Id., at p. 1420.)

Here,

unlike in Lineaweaver, there is no evidence that Mr. Roberts worked directly with the Metalclad insulation. Additionally, unlike Lineaweaver, where the insulation at issue was used in 50% of the insulation work at that worksite, the evidence here at most shows that there was insulation around the hot pipes in the Kaiser Steel Plant. Although Mr. Roberts testified that he handled pumps and valves when he removed and replaced gaskets on these components, he also testified that he had never worked with insulation on pipes at Kaiser Steel and that he had never installed or removed insulation from these components. Given that there is no evidence that Mr. Roberts ever worked around the asbestos-containing Metalclad insulation present at Kaiser Steel or that the insulation was prevalent in the spaces where he worked, the evidence is insufficient to support an inference that the material exposed Mr. Roberts to asbestos.

Plaintiffs

fail to meet their burden to present affirmative evidence supporting their claims against Metalclad. Accordingly, Metalclad's motion for summary judgment is granted. The motions for summary adjudication are moot.

III.

Conclusion

Metalclad meets its burden to show that Plaintiffs lack and cannot reasonably obtain evidence that Mr. Roberts was exposed to an asbestos-containing product for which it was responsible. Plaintiffs fail to present affirmative evidence to support their claims against Metalclad. Accordingly, Metalclad's motion for summary judgment is granted. The motions for summary adjudication are moot.

Metalclad to give notice.